

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC,

RESPONDENT.

**COMPLAINANT PELOTON INTERACTIVE, INC.'S
RESPONSE TO FLEXPORT'S REQUEST FOR EXPEDITED HEARING ON
CLARIFICATION OF ORDER DATED JUNE 30, 2025**

In response to Flexport International LLC's ("Flexport's") request for an expedited hearing to clarify the Presiding Officer's June 30, 2025 order (the "June 30 Order"), Peloton Interactive, Inc. ("Peloton") (together with Flexport, the "Parties") respectfully submits that a hearing is unnecessary as the June 30 Order provides clear direction regarding Flexport's obligations to produce all responsive documents to Peloton's Request for Production ("RFP") 4.¹

¹ Peloton's RFP 4: "Produce all Documents and records in connection with the Peloton Shipments, including all contracts and agreements, service agreements with Ocean Carriers, negotiated service arrangements (NSAs), negotiated rate arrangements (NRAs), freight invoices, bills of lading, waybills, Documents and Container management data, Motor Carrier work orders, Motor Carrier invoices, Motor Carrier bills of lading, linehaul bills of lading, freight invoices, Demurrage and Detention invoices, Marine and Inland Terminal data and records, railroad records, Motor Carrier records, and payment records."

After reviewing the Motion to Compel briefing on this issue and the March 26, 2025 Memorandum Order (“March 26 Order”), the Presiding Officer found that Peloton’s RFP 4 is “reasonably calculated to lead to the discovery of admissible evidence,” overruled Flexport’s objection, and ordered Flexport to produce “all responsive documents” within 15 days. *See* June 30 Order at 15.

Peloton has consistently maintained throughout this Proceeding that the documents sought by RFP 4 are necessary and relevant to its claims. *See* Peloton’s Motion to Compel, Jan. 14, 2025, Dkt. No. 32, at 8 (“documents and information pertaining to Flexport’s movement of Peloton’s goods—including its use of and relationships with subcontractors engaged in that process—[are] directly relevant to Peloton’s claims within the meaning of Rule 141(e)”). Peloton did not waive this RFP—nor its arguments regarding these documents’ clear relevance—when it agreed to abide by the March 26 Order. Further discovery and depositions have only reinforced the relevance and importance of these documents.²

Accordingly, Peloton does not believe that a hearing is necessary and that both Parties should move forward in complying with the June 30 Order.

Dated: July 2, 2025

Respectfully Submitted,

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² For example, Flexport has claimed that its demurrage and detention (“D&D”) tariff application is contingent upon the underlying vessel carriers application of free time, and that it relies on its truckers to communicate and dispute charges on its behalf. Accordingly, assessing the reasonableness of Flexport’s D&D assessment requires a review and analysis of documents and records related to Flexport’s dealings with its third-party service providers, including agreements, work orders, and invoices.

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: July 2, 2025

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